UNITED STATES DISTRICT COURT
DISTRICT OF MAINE

R. N., a minor, by and through her Mother and Next Friend, Merline Ngiramahoro, Plaintiffs v. XAVIER BOTANA, then- Superintendent of Portland Schools, and PORTLAND PUBLIC SCHOOLS, Defendants.	Civil Action No. 2:26-cv-00342-SDN

DEFENDANTS' MOTION TO DISMISS THE COMPLAINT WITH INCORPORATED MEMORANDUM OF LAW

Pursuant to Federal Rule of Civil Procedure 12(b)(6), Defendants hereby move to dismiss Plaintiff's Complaint (ECF No. 1-4) for failure to state a claim upon which relief can be granted.

INTRODUCTION

Plaintiff, R.N., is a former student of the Portland Public Schools (PPS) and brings these civil rights and negligence claims by and through her Mother and Next Friend, Merline Ngiramahoro. Plaintiff's claims arise out of the criminal conduct of a former PPS employee, Benjamin Conroy, who sexually assaulted R.N. in October of 2021. Plaintiff brings her claims against the Portland Public Schools District (the "School Department" or "Department") and Xavier Botana, the PPS Superintendent at the time of Conroy's criminal conduct. Plaintiff's Complaint fails to state a claim and should be dismissed in its entirety.

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[1] When evaluating a Rule 12(b)(6) motion to dismiss, the court "accept[s] as true all well-pleaded facts alleged in the complaint." *Alston v. Spiegel*, 988 F.3d 564, 571 (1st Cir. 2021).

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INTRODUCTION

Plaintiff, R.N., is a former student of the Portland Public Schools (PPS) and brings these civil rights and negligence claims by and through her Mother and Next Friend, Merline Ngiramahoro. Plaintiff's claims arise out of the criminal conduct of a former PPS employee, Benjamin Conroy, who sexually assaulted R.N. in October of 2021. Plaintiff brings her claims against the Portland Public Schools District (the "School Department" or "Department") and Xavier Botana, the PPS Superintendent at the time of Conroy's criminal conduct. Plaintiff's Complaint fails to state a claim and should be dismissed in its entirety.

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BACKGROUND

The Complaint alleges the following well-pleaded facts.[1] R.N. has been diagnosed with Autism Spectrum Disorder and, in Fall 2021, she was a student in PPS's BEACH program, a specialized educational program administered by both teachers and education technicians ("ed techs") at Ocean Avenue Elementary School ("Ocean Avenue") for students with special needs, including those diagnosed with autism spectrum disorder. Complaint ¶¶ 3, 8-9, 20. Prior to the commencement of the 2021-2022 academic year, supervisors and ed techs at Ocean Avenue, including some working with the BEACH program, informed the Principal and then Superintendent Botana that "understaffing of [ed techs] was causing them not to fulfill their job requirements and was also placing their students at risk for harm." *Id.* ¶ 12. Plaintiff alleges that no "meaningful response" was received from anyone in the PPS administration in response to these concerns. *Id.* ¶ 13.

Conroy was hired in late summer of 2021 to work as an ed tech, and Plaintiff alleges that "no meaningful screening of his application occurred" prior to his hiring, claiming that no background checks were performed and no previous employers were contacted. *Id.* ¶ 17. In early October 2021, Plaintiff alleges that one of Conroy's "colleagues" asked Conroy whether everything was "alright," and that Conroy responded by saying that he was "going to do something really bad." *Id.* ¶ 18.

In October 2021, Conroy sexually assaulted R.N. during the school day, and he captured it on video with his cell phone and thereafter posted that video online. *Id.* ¶¶ 21-22, 26. Conroy was arrested and incarcerated in federal prison. *Id.* ¶ 27.

Plaintiff alleges, through her mother, that her mother has suffered severe emotional distress as a result of the sexual assault. *Id.* ¶ 32. Plaintiff also alleges that PPS has rules, applicable to ed techs, that prohibit the use of personal cell phones while working and provide

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that no ed tech should work in a one-on-one relationship with any student in the BEACH program. *Id.* ¶ 15.

LEGAL STANDARD

"[A] complaint will survive a motion to dismiss when it alleges 'enough facts to state a claim to relief that is plausible on its face.'" *Alston v. Spiegel*, 988 F.3d 564, 571 (1st Cir. 2021) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). "This plausibility standard is 'not akin to a "probability requirement"' but it 'demands more than an unadorned, the-defendant-unlawfully-harmed-me accusation.'" *Cebollero-Bertran v. P.R. Aqueduct & Sewer Auth.*, 4 F.4th 63, 70 (1st Cir. 2021) (quoting *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). "'If the factual allegations in the complaint are too meager, vague, or conclusory to remove the possibility of relief from the realm of mere conjecture,' dismissal is proper." *Alston*, 988 F.3d at 571 (quoting *SEC v. Tambone*, 597 F.3d 436, 442 (1st Cir. 2010)). In evaluating the sufficiency of the complaint, the Court "need not credit a plaintiff's '[t]hreadbare recitals of the elements of a cause of action, supported by mere conclusory statements.'" *Id.* (quoting *Iqbal*, 556 U.S. at 678).

ARGUMENT

The Complaint includes four counts, all of which are alleged against the School Department and Botana. In Count I, Plaintiff alleges a claim under the Maine Human Rights Act (MHRA); in Count II, she alleges a violation of her civil rights, citing in the caption of Count II to the Maine Civil Rights Act (MCRA), Title IX, and 42 U.S.C. § 1983; in Count III, she alleges a state law tort claim for negligent infliction of emotional distress (NIED); and, in Count IV, she does not allege a cause of action but rather claims that she is entitled to punitive damages. The Complaint fails to state a claim upon which relief can be granted.

Plaintiff alleges, through her mother, that her mother has suffered severe emotional distress as a result of the sexual assault. *Id.* ¶ 32. Plaintiff also alleges that PPS has rules, applicable to ed techs, that prohibit the use of personal cell phones while working and provide that no ed tech should work in a one-on-one relationship with any student in the BEACH program. *Id.* ¶ 15.

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does not allege a cause of action but rather claims that she is entitled to punitive damages. The Complaint fails to state a claim upon which relief can be granted.

I. Plaintiff Failed to State a Cognizable Claim Under the MHRA (Count I)

i. Plaintiff's MHRA Claim is Time-Barred

"Before a plaintiff with a MHRA claim may recover attorney fees and damages, the plaintiff must establish that she first brought a claim before the Maine Human Rights Commission." *Gordon v. Cummings*, 2000 ME 68, ¶ 11, 756 A.2d 942; *see* 5 M.R.S. § 4622(1). Here, Plaintiff has not alleged that she exhausted this administrative remedy, nor could she because her complaint with the MHRC was filed more than 300 days after the alleged act of discrimination, and it was therefore dismissed as untimely. *See* 5 M.R.S. § 4611. Plaintiff therefore cannot pursue attorney's fees or damages, and there are no other remedies available to her under the MHRA.[2] *See Gordon*, 2000 ME 68, ¶ 11, 756 A.2d 942.

Even if Plaintiff wanted to pursue an MHRA claim absent the possibility of a remedy, her MHRA claim is time-barred. For although the MHRA permits the filing of an MHRA complaint in the Superior Court directly, it requires that a plaintiff commence an action under the MHRA "not more than either 2 years after the act of unlawful discrimination complained of or 90 days after any of the occurrences listed under [5 M.R.S. § 4622(1)(A)-(D)], whichever is later." 5 M.R.S. § 4613(3).[3] Here, Plaintiff commenced this action in Cumberland County Superior Court

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[2] Even setting aside her failure to exhaust administrative remedies, Plaintiff nevertheless would not be able to recover compensatory damages for any MHRA claim that alleges discrimination in education. *See* 5 M.R.S. § 4613(2) (providing recovery for damages in the case of intentional employment discrimination but not for education discrimination).

[3] Unlike some other statutes, such as the Maine Tort Claims Act, *see* 14 M.R.S. § 8110, and claims for medical malpractice, *see* 24 M.R.S. §2902, the MHRA does not extend the time limit for minors.

I. Plaintiff Failed to State a Cognizable Claim Under the MHRA (Count I)

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[3] Unlike some other statutes, such as the Maine Tort Claims Act, *see* 14 M.R.S. § 8110, and claims for medical malpractice, *see* 24 M.R.S. §2902, the MHRA does not extend the time limit for minors.

[4] Plaintiff had to file her Complaint within 2 years after the act of unlawful discrimination given that the occurrences listed under [5 M.R.S. § 4622(1)(A)-(D)] are inapplicable as a result of Plaintiff's MHRC complaint being dismissed as untimely.

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ii. Plaintiff's Mother Has No MHRA Claim

Plaintiff alleges that "R.N.'s mother has suffered damages" as a result of the alleged violation of R.N.'s rights under the MHRA. Complaint ¶ 39. R.N.'s mother is not a Plaintiff in this case; she brings this action solely on behalf of her minor child.[5] Even if R.N.'s mother were a proper Plaintiff, she has no standing to recover for what she claims was a violation of her child's rights.

iii. Plaintiff Does Not State a Claim for Discrimination in Education Under the MHRA

Plaintiff alleges a violation under the MHRA on the basis that the School Department[6] (i) failed to follow or enforce its policies preventing staff members from cell phone use and from being 1:1 with students and (ii) acted with "deliberate indifference" in allegedly failing to respond to reports, made prior to the 2021 school year, that the BEACH classroom was understaffed. Complaint ¶¶ 12-13, 15, 23, 36-37.

The MHRA provides students with the right to be free from discrimination in their education "because of sex, sexual orientation or gender identity, a physical or mental disability, ancestry, national origin, race, color or religion." 5 M.R.S. § 4601. "Maine courts look to federal law in the interpretation of the MHRA." *Doe v. Sch. Admin. Dist. No. 19*, 66 F. Supp. 2d 57, 61-62 (D. Me. 1999) (assessing student's MHRA and Title IX claims in tandem under the Title IX framework).

Although Plaintiff does not explicitly allege what she believes to be the basis for any discriminatory animus, she does not plead any basis for discrimination other than sex. Complaint ¶ 21 (alleging that she was sexually assaulted). Any MHRA claim will therefore require a showing of, at minimum, deliberate indifference. *See, e.g.*, *Gebser v. Lago Vista Indep.*

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[5] Plaintiff refers in the Complaint at times to the "Plaintiffs" in the plural. *See, e.g.*, Complaint ¶¶ 45, 47.

[6] There is no individual liability under the MHRA. *See, e.g.*, *Charette v. St. John Valley Soil & Water Conservation Dist.*, No. 1:17-cv-35, 2017 U.S. Dist. LEXIS 94433, at *32 (D. Me. 2017).

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ii. Plaintiff's Mother Has No MHRA Claim

Plaintiff alleges that "R.N.'s mother has suffered damages" as a result of the alleged violation of R.N.'s rights under the MHRA. Complaint ¶ 39. R.N.'s mother is not a Plaintiff in this case; she brings this action solely on behalf of her minor child.[5] Even if R.N.'s mother were a proper Plaintiff, she has no standing to recover for what she claims was a violation of her child's rights.

iii. Plaintiff Does Not State a Claim for Discrimination in Education Under the MHRA

Plaintiff alleges a violation under the MHRA on the basis that the School Department[6] (i) failed to follow or enforce its policies preventing staff members from cell phone use and from being 1:1 with students and (ii) acted with "deliberate indifference" in allegedly failing to respond to reports, made prior to the 2021 school year, that the BEACH classroom was understaffed. Complaint ¶¶ 12-13, 15, 23, 36-37.

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Sch. Dist., 524 U.S. 274, 290 (1998) (explaining that a school's response "must amount to deliberate indifference to discrimination" in order to show Title IX liability).

For all of the reasons discussed below with respect to any alleged Title IX claim, the Complaint fails to plausibly allege any facts showing deliberate indifference on the part of the school. Namely, the fact that the school was informed that the BEACH classroom was understaffed and did nothing in response, if true, does not amount to deliberate indifference because such reports would not have put the school on notice that an ed tech would commit a criminal act by sexually assaulting a student. Nor do Plaintiff's allegations that the school failed to ensure that Conroy followed its policies amount to deliberate indifference. *See Porto v. Town of Tewksbury*, 488 F.3d 67, 73 (1st Cir. 2007) ("[A] claim that the school system could or should have done more is insufficient to establish deliberate indifference.").

Plaintiff therefore failed to plausibly allege a claim for discrimination under the MHRA.

II. Plaintiff Failed to Plausibly Allege a Civil Rights Claim (Count II)

In the caption to Count II of the Complaint, Plaintiff cites to the MCRA, Title IX and Section 1983. Defendants address each of those statutes in turn.

i. Plaintiff Has No Cognizable Claim Under the MCRA

The MCRA affords a private right of action to "[a] person whose exercise or enjoyment of the rights secured by the United States Constitution or the laws of the United States or of the rights secured by the Constitution of Maine or the laws of the State has been interfered with or attempted to be interfered with." 5 M.R.S. § 4682(1-A). Such a cause of action applies, however, only "when there has been the use or threat of 'physical force or violence' in an effort to interfere with the exercise of a constitutional right." *Bagley v. Raymond Sch. Dep't*, 1999 ME 60, ¶ 10 n.5, 728 A.2d 127, 131; *see* 5 M.R.S. § 4682(1-A). Both the Law Court and this Court have therefore recognized that "[t]he Maine Civil Rights Act does not apply to claims where there is no claim of real or threatened violence." *Hewes v. Pangburn*, No 1:21-CV-00125-JDL, 2022 WL 823924, at

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Although Plaintiff does not explicitly allege what she believes to be the basis for any discriminatory animus, she does not plead any basis for discrimination other than her sex. Complaint ¶ 21 (alleging that she was sexually assaulted). Any MHRA claim will therefore require a showing of, at minimum, deliberate indifference. *See, e.g.*, *Gebser v. Lago Vista Indep. Sch. Dist.*, 524 U.S. 274, 290 (1998) (explaining that a school's response "must amount to deliberate indifference to discrimination" in order to show Title IX liability).

For all of the reasons discussed below with respect to any alleged Title IX claim, the Complaint fails to plausibly allege any facts showing deliberate indifference on the part of the school. Namely, the fact that the school was informed that the BEACH classroom was understaffed and did nothing in response, if true, does not amount to deliberate indifference because such reports would not have put the school on notice that an ed tech would commit a criminal act by sexually assaulting a student. Nor do Plaintiff's allegations that the school failed to ensure that Conroy followed its policies amount to deliberate indifference. *See Porto v. Town of Tewksbury*, 488 F.3d 67, 73 (1st Cir. 2007) ("[A] claim that the school system could or should have done more is insufficient to establish deliberate indifference.").

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Thus, where a plaintiff alleged that a school employee sexually abused her as a student but failed to plead any supporting facts showing that the *school district* interfered or attempted to interfere with her rights through physical force or violence or threat of the same, this Court dismissed her MCRA claim against the school district. *Hewes*, 2022 WL 823924, at *12. So too here, Plaintiff has failed to plausibly allege any facts to support a claim that either the School Department or Botana used or threatened violence against R.N., and Plaintiff's MCRA claim therefore must be dismissed. *Id.*

ii. Plaintiff Failed to State a Claim Under Title IX

A Title IX "violation can occur when a Title IX funding recipient is deliberately indifferent to known acts of sexual harassment of a student by a teacher."[7] *Doe v. Pawtucket Sch. Dep't*, 969 F.3d 1,7 (1st Cir. 2020). A teacher's sexual harassment of a student is not alone sufficient to allege a Title IX violation against a school district: liability under "Title IX is predicated upon notice to

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[7] Title IX's implied private right of action "extends only to the educational institution itself," and Plaintiff therefore has no Title IX claim against Botana. *Frazier v. Fairhaven Sch. Cmt'e*, 276 F.3d 52, 65 (1st Cir. 2002).

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ii. Plaintiff Failed to State a Claim Under Title IX

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(1) Did the plaintiff identify an "appropriate person" (i.e., a school district official with the authority to take corrective measures in response to actual

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> (1) Did the plaintiff identify an "appropriate person" (i.e., a school district official with the authority to take corrective measures in response to actual notice of sexual harassment), (2) was the substance of the actual notice sufficient to alert the school official of the possibility of harassment, and (3) did that official exhibit deliberate indifference to the harassment.

Wadsworth v. Nguyen, 129 F.4th 38, 69 (1st Cir. 2025) (quotation marks and alterations omitted). The "actual notice" inquiry is an objective one and, although the school need not have detailed proof that harassment is occurring, "actual notice" is indeed actual notice, requiring "notice that there was a substantial risk or 'possibility' that harassment was occurring." *Id.* at 70 (emphasis supplied); *see also Gebser*, 524 U.S. at 290 ("The administrative enforcement scheme presupposes that an official who is advised of a Title IX violation refuses to take action to bring the recipient into compliance."). Related to the actual notice requirement, there can be Title IX liability only when the Title IX funding recipient is "deliberately indifferent to known acts of sexual harassment of a student by a teacher." *Pawtucket Sch. Dep't*, 969 F.3d at 7. This deliberate indifference standard is a "demanding one" so as to "eliminate the risk that [a funding] recipient would be liable in damages not for its own official decision but instead for its employees' independent actions." *Santiago v. Puerto Rico*, 655 F.3d 61, 73 (1st Cir. 2011). "[A] claim that the school system could or should have done more is insufficient to establish deliberate indifference." *Porto v. Town of Tewksbury*, 488 F.3d 67, 73 (1st Cir. 2007).

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Wadsworth v. Nguyen, 129 F.4th 38, 69 (1st Cir. 2025) (quotation marks and alterations omitted).

The "actual notice" inquiry is an objective one and, although the school need not have detailed proof that harassment is occurring, "actual notice" is indeed actual notice, requiring "notice that there was a substantial risk or 'possibility' that harassment was occurring." *Id.* at 70 (emphasis supplied); *see also Gebser*, 524 U.S. at 290 ("The administrative enforcement scheme presupposes that an official who is advised of a Title IX violation refuses to take action to bring the recipient into compliance."). Related to the actual notice requirement, there can be Title IX liability only when the Title IX funding recipient is "deliberately indifferent to known acts of sexual harassment of a student by a teacher." *Pawtucket Sch. Dep't*, 969 F.3d at 7. This deliberate indifference standard is a "demanding one" so as to "eliminate the risk that [a funding] recipient would be liable in damages not for its own official decision but instead for its employees' independent actions." *Santiago v. Puerto Rico*, 655 F.3d 61, 73 (1st Cir. 2011). "[A] claim that the school system could or should have done more is insufficient to establish deliberate indifference." *Porto v. Town of Tewksbury*, 488 F.3d 67, 73 (1st Cir. 2007).

Here, Plaintiff has failed to plausibly allege facts showing that the school had actual notice that Conroy assaulted R.N., and she has therefore necessarily also failed to plead facts showing deliberate indifference. The Complaint alleges that, prior to the 2021-2022 school year, the School Department was "aware that the BEACH program . . . was substantially understaffed;" that supervisors and ed techs at Ocean Avenue had informed the Principal and then Superintendent Botana that "understaffing of education technicians was causing them not to fulfill their job requirements and was also placing their students at risk for harm;" and that

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Here, Plaintiff has failed to plausibly allege facts showing that the school had actual notice that Conroy assaulted R.N., and she has therefore necessarily also failed to plead facts showing deliberate indifference. The Complaint alleges that, prior to the 2021-2022 school year, the School Department was "aware that the BEACH program . . . was substantially understaffed," that supervisors and ed techs at Ocean Avenue had informed the Principal and then Superintendent Botana "that understaffing of education technicians was causing them not to fulfill their job requirements and was also placing their students at risk for harm," and that Conroy said to one of his colleagues "I'm going to do something really bad." Complaint ¶¶ 10, 12, 18, 44-45. These facts fail to allege that the School Department had notice of a substantial risk or possibility that sexual assault of R.N. was occurring. As an initial matter, Plaintiff alleges facts regarding instances of purported "notice" that occurred before the assault; thus, it would have been temporally impossible for the School Department to know that sexual assault of R.N. was occurring. In any event, the school's knowledge of understaffing in the BEACH classroom does not provide the school with notice of the possibility that an employee will commit a criminal act. *See, e.g.*, *Gebser*, 524 U.S. at 291 (high school principal's receipt of "a complaint from parents of other students charging . . . that [a teacher] had made inappropriate comments during class . . . was plainly insufficient to alert the principal to the possibility that [the teacher] was involved in a sexual relationship with a student"). Plaintiff therefore fails to state a claim under Title IX.

iii. Plaintiff Does Not State a Claim Under Section 1983

It is unclear whether Plaintiff brings a claim under 42 U.S.C. § 1983 that is distinct from her Title IX claim.[8] Although Plaintiff cites to both Section 1983 and Title IX in the caption of

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[8] 42 U.S.C. § 1983 provides a cause of action for deprivation of federal rights; however, Title IX includes its own implied private right of action. *See, e.g.*, *Cannon v. University of Chicago*, 441 U.S. 677 (1979); *Gebser v. Lago Vista Indep. Sch. Dist.*, 524 U.S. 274, 281 (1998).

Conroy said to one of his colleagues "I'm going to do something really bad." Complaint ¶¶ 10, 12, 18, 44-45.

These facts fail to allege that the School Department had notice of a substantial risk or possibility that sexual assault of R.N. was occurring. As an initial matter, Plaintiff alleges facts regarding instances of purported "notice" that occurred before the assault; thus, it would have been temporally impossible for the School Department to know that sexual assault of R.N. was occurring. In any event, the school's knowledge of understaffing in the BEACH classroom does not provide the school with notice of the possibility that an employee will commit a criminal act. *See, e.g.*, *Gebser*, 524 U.S. at 291 (high school principal's receipt of "a complaint from parents of other students charging . . . that [a teacher] had made inappropriate comments during class . . . was plainly insufficient to alert the principal to the possibility that [the teacher] was involved in a sexual relationship with a student"). Plaintiff therefore fails to state a claim under Title IX.

CONCLUSION

Although the underlying facts giving rise to Plaintiff's Complaint are tragic, Plaintiff's Complaint must be dismissed in its entirety because it fails to state a claim upon which relief can be granted.

Dated: July 7, 2026

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